

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Tessa Yesselman	Team: Squad #12	CCRB Case #: 201510318	☒ Force	☒ Discourt.	☐ U.S.
			☐ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Sunday, 12/06/2015 6:00 AM	Location of Incident: Inside the 33rd Precinct stationhouse	18 Mo. SOL 6/6/2017	Precinct: 33		
Date/Time CV Reported Sun, 12/06/2015 5:22 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Sun, 12/06/2015 5:22 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Jonpierre Dossantos	03943	938391	033 PCT
2. Officers			
3. POM Jonathan Itin	28857	953990	033 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Kevin Long	04464	954077	033 PCT
2. POM Zoltan Kui	19730	927789	033 PCT
3. POM John Cacioppo	00921	945540	033 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Jonpierre Dossantos	Force: Sgt. Jonpierre Dossantos used physical force against § 87(2)(b)	A . Unfounded
B . POM Jonathan Itin	Force: PO Jonathan Itin used physical force against § 87(2)(b)	B . Unfounded
C . Officers	Force: Officers used physical force against § 87(2)(b)	C . Unfounded
D . SGT Jonpierre Dossantos	Discourtesy: Sgt. Jonpierre Dossantos spoke discourteously to § 87(2)(b)	D . Unsubstantiated
E . Officers	Discourtesy: Officers spoke discourteously to § 87(2)(b)	E . Officer(s) Unidentified
F . Officers	Off. Language: Officers made remarks to § 87(2)(b) based upon her gender.	F . Officer(s) Unidentified

Case Summary

On December 6, 2015, § 87(2)(b) § 87(2)(b) filed the following complaint with the CCRB via the call processing system.

On December 6, 2015, § 87(2)(b) § 87(2)(b) went to the 33rd Precinct stationhouse. Sgt. Pierre Dos Santos, PO Jonathan Itin, and other officers from the 33rd Precinct allegedly pushed § 87(2)(b) § 87(2)(b) and pulled her hair while attempting to escort her out of the stationhouse (**Allegation A, B, and C**). Sgt. Dos Santos allegedly told § 87(2)(b) § 87(2)(b) to shut the “fuck” up (**Allegation D**). Officers from the 33rd Precinct allegedly told § 87(2)(b) § 87(2)(b) to shut the “fuck” up, and called her “stupid,” and a “dumbass bitch” (**Allegation E and F**).

No arrests were made or summonses issued as a result of this incident.

There is no video footage regarding this incident.

§ 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) § 87(2)(b) was offered mediation and rejected it.
- On § 87(2)(b) § 87(2)(b), § 87(2)(b) § 87(2)(b) filed a Notice of Claim with the Office of the Comptroller. § 87(2)(b) § 87(2)(b) claim states that she sustained severe permanent personal injuries. The claim is for personal injuries, hospital, physician and other medical expenses, pain and suffering, loss of quality and or/enjoyment of life, and all other damages. The 50-H hearing is scheduled for § 87(2)(a) Gen.Mun. § 87(2)(b) § 87(2)(b) (**12 Board Review**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint § 87(2)(b) § 87(2)(b) has been party to (**08 Board Review**).
- Sgt. Dos Santos has been a member of service for 10 years and has 3 previous allegations filed against him § 87(2)(g) § 87(2)(g), and no substantiations.
- PO Jonathan Itin has been a member of service for 3 years. This is the first CCRB case brought against him.

Findings and Recommendations

Explanation of Subject Officer Identification

§ 87(2)(b) § 87(2)(b) stated that Sgt. Dos Santos, along with five other officers, attempted to eject her from the stationhouse. § 87(2)(b) § 87(2)(b) described being pushed, punched in the back, and having her hair pulled. § 87(2)(b) § 87(2)(b) could not see which officer took which action, because the officers were behind her.

When § 87(2)(b) turned around inside of the vestibule, she saw the officers. Several of the unidentified officers allegedly spoke discourteously to § 87(2)(b) and told her to shut the “fuck up,” and called her a “dumbass”, “stupid”, and a “bitch.” The investigation interviewed every officer known to be at the stationhouse at the time of the incident, and could not determine the identities of the officers alleged by § 87(2)(b) to have used physical force against her and spoke discourteously to her. § 87(2)(g)

Allegation A- Force: Sgt. Jonpierre Dos Santos used physical force against § 87(2)(b)

§ 87(2)(b)

Allegation B- Force: PO Jonathan Itin used physical force against § 87(2)(b) § 87(2)(b)

Allegation C- Force: Officers used physical force against § 87(2)(b) § 87(2)(b)

During her call to IAB, § 87(2)(b) stated that she saw an individual being arrested outside of her apartment building, and that the police had their knees in the individual’s neck. § 87(2)(b) went to the 33rd Precinct stationhouse because she wanted to check and see if the individual was okay, and if the police had beaten him up. § 87(2)(b) had a conversation with PO Long, and PO Long gave § 87(2)(b) information about the arrest. PO Long told § 87(2)(b) that the individual was going to be released with a summons. PO Long also told § 87(2)(b) about meetings that the police have with the community, where community members can speak. While § 87(2)(b) was speaking with PO Long, Sgt. Dos Santos grabbed § 87(2)(b) and threw her out of the stationhouse. Two female officers were present. An officer told § 87(2)(b) that she needed to fix her “fucking” hair. § 87(2)(b) reported feeling pain in her arms and waist (**01 Board Review**).

During § 87(2)(b) statement at the CCRB, § 87(2)(b) explained that she went to the 33rd Precinct stationhouse to learn about meetings that the police department has in the community, where members of the public can speak about issues involving police in the community. § 87(2)(b) stated that there had been several incidents with the police in the community, and that she was at the stationhouse to find out about the meetings, and not to speak about any specific incident involving the police. § 87(2)(b) did not mention seeing anyone getting arrested, or making inquiries about arrests at the stationhouse.

§ 87(2)(b) stated that she was having an amiable conversation with PO Long and was planning on leaving the stationhouse after their conversation concluded. Unprovoked, Sgt. Dos Santos grabbed § 87(2)(b) by her lower waist and pelvic area. Sgt. Dos Santos left hand touched § 87(2)(b) right thigh, and his right hand touched her left thigh. Sgt. Dos Santos pushed § 87(2)(b) back. § 87(2)(b) could not recall how many steps back she took as a result of the push. Four additional officers came and joined Sgt. Dos Santos to help him eject § 87(2)(b) from the stationhouse, and Sgt. Dos Santos continued to push § 87(2)(b) by her pelvis and waist area. PO Long said, “That’s enough,” but Sgt. Dos Santos “shooed” PO Long away, and PO Long placed his head down, and looked away.

Two civilians present in the stationhouse, described by § 87(2)(b) as being black and Hispanic males, stood between § 87(2)(b) and Sgt. Dos Santos, lifted their arms, and told Sgt. Dos Santos to “stop.” § 87(2)(b) eventually walked out of the stationhouse,

and called 911 once she crossed the street **(02 Board Review)**. § 87(2)(b) was transferred to IAB, and she reported that she had sustained cuts and bleeding to her hands. IAB requested an ambulance, and § 87(2)(b) was transported to § 87(2)(b) **(01 Board Review)**.

§ 87(2)(a) PHL § 18(6)

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Two individuals, identified by § 87(2)(b) and § 87(2)(b) were arrested outside of § 87(2)(b) apartment, located at § 87(2)(b) in Manhattan. § 87(2)(b) and § 87(2)(b) are black and Hispanic respectively. § 87(2)(b) and § 87(2)(b) were unavailable to the investigation **(10 Board Review)**.

Sgt. Dos Santos and PO Long both stated that § 87(2)(b) entered the stationhouse to ask about what was going to happen to the individuals arrested by PO Itin and PO Cacioppo **(03 Board Review, 04 Board Review)**. Sgt. Dos Santos thought that § 87(2)(b) was § 87(2)(b) boyfriend because he called § 87(2)(b) “babe,” and asked § 87(2)(b) to calm down **(03 Board Review)**.

Sgt. Dos Santos stated that he first approached § 87(2)(b) after she began speaking loudly to PO Long, and he became concerned that she would alarm other civilians present in the stationhouse. Sgt. Dos Santos asked § 87(2)(b) to leave the stationhouse, and she refused. Sgt. Dos Santos thought § 87(2)(b) was intoxicated because her eyes were glassy and he could smell alcohol emanating from her person. Sgt. Dos Santos asked § 87(2)(b) to leave the stationhouse approximately three times, and each time she refused. Sgt. Dos Santos then placed his right hand on § 87(2)(b) right arm and attempted to escort her out of the stationhouse. § 87(2)(b) pulled her arm away from Sgt. Dos Santos and continued to refuse to leave. Sgt. Dos Santos told § 87(2)(b) that she could be arrested for criminal trespassing, because she was no longer welcome in the stationhouse. Sgt. Dos Santos then placed both of his hands on § 87(2)(b) right arm in another attempt to escort her out of the stationhouse. § 87(2)(b) pulled her arm away from Sgt. Dos Santos again, and walked out of the stationhouse with § 87(2)(b).

§ 87(2)(g)

Therefore, it is recommended that **Allegation D** be closed as **unsubstantiated**.

Allegation E- Discourtesy: An officer spoke discourteously to § 87(2)(b) § 87(2)(b)

Allegation F- Offensive Language: An officer made remarks to § 87(2)(b) § 87(2)(b) based on her gender.

§ 87(2)(g)

Therefore, it is recommended that **Allegation E** and **F** be closed as **officer unidentified**.

Squad: 12

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date